

Evidence Pack - GS Construction vs Modern Builders & Design

gs.construction/compare/modern-builders-design | prepared 2026-07-30
Prepared for review by counsel. Factual compilation, not legal advice.

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Page: <https://gs.construction/compare/modern-builders-design>
Competitor site: <https://www.modernbuildersdesign.com>
Prepared: 2026-07-30
Page fact-check date recorded in site config: last_verified = 2026-07-16
Prepared for review by counsel. Documents (1) what the page publishes about Modern Builders & Design, (2) the source on Modern Builders & Design's own public website for each statement, and (3) what the page does not contain. Factual compilation, not legal advice.

1. What the page is

A comparison page ("GS Construction vs Modern Builders & Design") that:

- refers to Modern Builders & Design by name, in plain text only, for identification;
- presents a criteria table where the "GS Construction" column describes our own business and the "Modern Builders & Design" column contains either facts published by Modern Builders & Design on its own website or generic guidance ("Varies - verify directly with the company");
- carries a disclaimer: "Informational comparison of publicly available information about Modern Builders & Design. Trademarks belong to their respective owners - verify details directly with each company.";
- shows a "Verified {month year}" line and links to both the source site and its Internet Archive copies.

2. What the page does NOT contain (verified programmatically, 2026-07-30)

Potential allegation	Finding
Use of Modern Builders & Design's images	None. Every /srcset asset on the page was enumerated (29 references): none is served from www.modernbuildersdesign.com or any third-party host. All photography is GS Construction's own.
Use of Modern Builders & Design's logo or trademarks beyond the name	None. The name appears as plain text for identification; the disclaimer states trademarks belong to their owners.
Copied website content / marketing copy	Automated comparison against 3,776 captured words found a longest shared run of 8 words; each match is listed in Sec.4 and consists of unprotectable factual wording.

3. Statements we publish about Modern Builders & Design, with source

3 statement(s). 0 carry a recorded verbatim citation shown on the live page as a hoverable mark linking to the source.

1. Primary service area

- Our page says: Barrington, South Barrington, Round Lake, Crystal Lake, Waukegan, and surrounding suburbs
- Closest wording found on their site: "Our teams work across the Chicago suburbs including Barrington, South Barrington, Waukegan, Crystal Lake, Hawthorn Woods, Inverness, Lake Barrington, and more.."
- Term overlap: 75% - candidate match, machine-found, not yet reviewed by a human
- Capture searched: homepage - <https://www.modernbuildersdesign.com/>

2. Project types

- Our page says: Kitchen, bathroom, and basement remodeling plus painting, epoxy floor coatings, and flooring
- Closest wording found on their site: "If you are looking for high-quality house painting, epoxy flooring, or remodeling contact Modern Builders."
- Term overlap: 40% - candidate match, machine-found, not yet reviewed by a human
- Capture searched: homepage - <https://www.modernbuildersdesign.com/>

3. Your point of contact

- Our page says: Project managers coordinate the contractors performing the work.
- Closest wording found on their site: "Our project managers will work closely with you to ensure our professional contractors perform a great job and meet your every construction need."
- Term overlap: 67% - candidate match, machine-found, not yet reviewed by a human
- Capture searched: homepage - <https://www.modernbuildersdesign.com/>

4. Verbatim-overlap check against their site

Longest shared run: 8 words. Matches (normalised, punctuation removed):

- (8 words) started in residential and commercial painting and epoxy

These are reported for completeness. Short factual sequences such as lists of suburb names, a company's own name, or a plainly-stated fact about its history are not protectable expression.

Method: both texts reduced to lowercase word tokens with punctuation removed, then compared for shared runs of 8+ consecutive tokens.

Attributed citation quotes are excluded from our side so they are assessed separately in Sec.3.

5. Independent third-party timestamps

Internet Archive captures are dated copies held by a third party, independent of both GS Construction and Modern Builders & Design. They corroborate what the site published without relying on either party's own record.

- Archived homepage - captured 2025-03-04 - <https://web.archive.org/web/20250304171731/https://www.modernbuildersdesign.com/>
- Full Internet Archive index for the domain: <https://web.archive.org/web/www.modernbuildersdesign.com>

Our own captures, taken 2026-07-30 and stored with this pack:

- <https://www.modernbuildersdesign.com/>
- <https://www.modernbuildersdesign.com/about-us/>

6. Context that may be useful to counsel

- Comparative advertising: the page follows standard truthful comparative-advertising practice - factual side-by-side, disclaimer, "verify directly" guidance, no use of the competitor's marks beyond the name itself.
- Nominative fair use: the competitor is identifiable only by name; no logo, styling, or trade dress is reproduced.
- Standing correction practice: the site records a last_verified date and re-verifies on a documented workflow; any demonstrated inaccuracy is corrected promptly.
- Consumer-guidance alignment: the comparison hub links to the Illinois Attorney General's consumer-protection guidance, which advises homeowners to "Get more than one estimate and get them in writing."

7. Accompanying files

- source-captures/modern-builders-design/homepage.html - homepage, fetched 2026-07-30 (238,835 bytes)
- source-captures/modern-builders-design/about-us.html - about-us, fetched 2026-07-30 (218,708 bytes)